

Massey
Signature of Sponsor

AMEND Senate Bill No. 1625*

House Bill No. 1684

by deleting Section 3 and substituting instead the following:

SECTION 3. Tennessee Code Annotated, Section 55-8-209(e), is amended by deleting the first sentence, which presently reads:

Personal delivery devices may be prohibited by local resolutions or ordinances if the local government determines that the prohibition is necessary, in the interest of public safety.

and substituting instead:

Personal delivery devices may be regulated or prohibited by local resolutions or ordinances if the local government determines that the regulation or prohibition is necessary, in the interest of public safety. A regulation adopted by a local government must not be inconsistent with this section.

AND FURTHER AMEND by deleting the amendatory language of Section 4 and substituting instead the following:

(a)

(1) Notwithstanding another law to the contrary and except as provided in subdivision (a)(2) and subsection (e), a person or entity may operate a personal delivery device on a sidewalk, crosswalk, bicycle lane or path, shoulder, the area adjacent to the right-hand edge or curb of the roadway, parking lot, or a similar area in this state.

(2) A personal delivery device must not be operated:

(A) In a bicycle lane of any road or highway where the speed limit is greater than forty-five miles per hour (45 mph);

(B) On the shoulder or the area adjacent to the right-hand edge or curb of the roadway of any road or highway where the speed limit is greater than forty-five miles per hour (45 mph) or the road or highway is a part of the interstate highway system or a controlled access highway; or

(C) In a crosswalk, whether marked or unmarked, if the device is not programmed to properly identify and safely use a crosswalk, including being able to:

- (i) Properly react to crosswalk signage or signals;
- (ii) Identify and distinguish crosswalks, pedestrians, and vehicular traffic;
- (iii) Yield or not obstruct the right-of-way to pedestrians; and
- (iv) Yield or not obstruct the right-of-way of traffic turning onto the road or highway.

(3) A personal delivery device must be regulated as, and is subject to all of the requirements under this chapter and chapter 10, parts 1-5 of this title that are applicable to, a pedestrian when operated in a pedestrian area or a bicyclist when operated in all other areas, except as to those provisions that by their nature can have no application or that would place an unreasonable burden on the operation of the personal delivery device.